University of Hawai'i Press

Chapter Title: The Trial and the Beginning of Silence

Book Title: Moments of Silence
Book Subtitle: The Unforgetting of the October 6, 1976, Massacre in Bangkok
Book Author(s): Thongchai Winichakul
Published by: University of Hawai'i Press. (2020)
Stable URL: https://www.jstor.org/stable/j.ctvwvr2pb.14

JSTOR is a not-for-profit service that helps scholars, researchers, and students discover, use, and build upon a wide range of content in a trusted digital archive. We use information technology and tools to increase productivity and facilitate new forms of scholarship. For more information about JSTOR, please contact support@jstor.org.

Your use of the JSTOR archive indicates your acceptance of the Terms & Conditions of Use, available at https://about.jstor.org/terms



University of Hawai'i Press is collaborating with JSTOR to digitize, preserve and extend access to *Moments of Silence*

This content downloaded from 3.104.43.49 on Fri, 30 Oct 2026 07:45:38 UTC
All use subject to https://about.jstor.org/terms

The Trial and the Beginning of Silence

审判与沉默的开始｜中英逐段对照译本

Thongchai Winichakul · Moments of Silence · University of Hawai‘i Press · 2020

原文范围：本章所上传 PDF 的英文正文及独立引文。原文件未附本章注释正文；正文引用标记原样保留。

[P001]

英文原文

Most of the three thousand people who were arrested from Thammasat University were released on bail in the first week after the police interrogations. I remember that advice circulated in the prison about how to answer the police interrogations—to tell the police that we had gone into TU for free music and entertainment or that we had followed friends there. We all disclaimed political ideology or any active role in the demonstration and the radical movement.1 Of course, about two dozen of the alleged ringleaders whose names were on the police list were denied bail. After a month, a few hundred remained because no one had bailed them out or they were too poor. Five months after the arrests, the police dropped all the charges for most people who were originally arrested, excepting the two dozen ringleaders, who included my brother and myself.2 On the basis of National Administrative Reform Council (NARC) Order no. 1, all the cases considered a threat to national security, including the suspects from the October 6 incident, were under the jurisdiction of the military court, even if they were civilians. In addition, thanks to the Communist Act at the time, the police could keep suspected communists, including in this case the ringleaders, in custody for a year without charge or trial, rather than the eighty-four days applicable to any other crime. Six of the alleged ringleaders were put in Bangkhwang, the facility for serious criminals. The women were held at the women’s prison. The rest, myself and my brother included, were at the Bangkhen prison.

中文译文

从法政大学被捕的三千人中，大多数在警方审讯后的第一周获准保释。我记得监狱里流传着关于如何回答警察审讯的建议——告诉警察，我们是为了免费的音乐与娱乐活动才去法政大学，或者只是跟朋友去了那里。我们都否认自己有任何政治意识形态，或曾积极参与示威与激进运动。当然，警方名单上的大约二十几名所谓头目被拒绝保释。一个月后，仍有几百人被关押，因为没有人替他们交保释金，或者他们太穷。被捕五个月后，警方撤销了原本被捕的大多数人的全部指控，只有包括我和我哥哥在内的二十几名头目除外。　根据国家行政改革委员会（National Administrative Reform Council，NARC）第1号命令，所有被视为威胁国家安全的案件，包括10月6日事件的嫌疑人，都归军事法庭管辖，即使被告是平民也不例外。此外，根据当时的《共产党法》，警方可以在不起诉、不审判的情况下拘留涉嫌共产主义活动的人长达一年，包括本案的所谓头目；而其他犯罪适用的期限只有84天。六名所谓头目被关进收押重罪犯的邦宽监狱（Bangkhwang）；女性被关押在女子监狱；其余的人，包括我和哥哥，则被关进邦肯监狱（Bangkhen）。

[P002]

英文原文

In mid-August 1977, five of the alleged ringleaders, including my brother, were released after the police decided to drop the charges against them. The remaining eighteen, including myself, were formally charged on August 25 and appeared in military court for the first time on September 5, 1977, almost a year after being arrested.3 The ten charges were revolt, treason, communist activities, assembling to use force that harms the public, killing policemen, possession of illegal weapons and military-grade ammunition, and more. The six who were arrested on the way to meet Seni were also charged with lèse majesté for their alleged involvement with the mock hanging of the crown prince.4 Under the law of the military court at the time, we could not have a lawyer to represent us and we had no right to appeal. We were on our own. We, the prisoners, quipped that had we been penalized to the maximum for each charge, each of us would have been executed almost a dozen times in addition to receiving several life sentences. Another student took part in the skit but was not at TU that night. He was arrested after the massacre and put on a separate but related trial for only one charge—lèse majesté. The trial was called in Thai the October 6 trial (khadi hok tula) and was known worldwide as the Bangkok 18 or Bangkok 18+1 case.

中文译文

1977年8月中旬，警方决定撤销对五名所谓头目的指控，他们因此获释，其中包括我的哥哥。剩余的18人，包括我，在8月25日被正式起诉，并于1977年9月5日第一次出庭军事法庭，距离被捕已将近一年。　十项罪名包括叛乱、叛国、共产主义活动、集会使用危害公众的武力、杀害警察、持有非法武器和军用弹药等等。六名在前往会见社尼途中被捕的人，还因为据称参与了模拟绞死王储的戏剧，而被加控冒犯君主罪。　根据当时的军事法庭法律，我们不能由律师代理，也无权上诉，只能依靠自己。我们这些囚犯开玩笑说，如果每一项指控都按最高刑罚判处，我们每个人除获得数次终身监禁之外，几乎还要被处决十几次。另有一名学生参加过这出戏，却在当晚不在法政大学。他在屠杀后被捕，单独接受一项相关审判，罪名只有冒犯君主罪。这场审判在泰语中被称为“10月6日审判”（khadi hok tula），在国际上则被称为“曼谷十八人”或“曼谷18+1案”。

[P003]

英文原文

This chapter describes the political changes during 1977 and 1978 that affected the October 6 trial and the memory of the massacre, and how the trial and memories of the massacre in turn stimulated more political change. The far-right royalist government became a major liability in the anticommunist efforts, which faced an unprecedented challenge from the growing Communist Party of Thailand (CPT). The coup in October 1977 marked a significant shift from the far right not only in national politics but also in the country’s anticommunist strategy. Meanwhile, the October 6 trial was full of ironies that had unexpected impacts. Above all, it turned into a public testament of the massacre whose real perpetrators were not on trial. The amnesty of the Bangkok 18+1 on September 16, 1978, marked the fall of the anticommunist triumphalist discourse in public sphere. Yet it did not lead to the recognition of the victims’ voices or memories. Instead, it marked the beginning of silence for the sake of reconciliation.

中文译文

本章描述1977年至1978年间影响10月6日审判和屠杀记忆的政治变化，以及审判和屠杀记忆又如何反过来推动更多政治变革。泰国共产党（Communist Party of Thailand，CPT）日益壮大，对反共行动构成前所未有的挑战，极右翼保皇派政府因此成为反共事业的一大负担。1977年10月的政变，不仅标志着国家政治从极右翼发生重大转向，也标志着国家反共战略的重大转向。与此同时，10月6日审判充满反讽，产生了意想不到的影响。尤其是，它变成了一场关于屠杀的公开见证，而真正的加害者却没有受到审判。1978年9月16日对曼谷18+1人的大赦，标志着反共胜利主义话语在公共领域的衰落，但并未使受害者的声音或记忆得到认可。相反，它开启了为了和解而保持沉默的时期。

In the Cage

牢笼之中

[P004]

英文原文

The Bangkhen prison was officially not a prison per se. It was one building within the compound of the police training school, manned by police officers, that was used to detain illegal immigrants who were waiting for deportation to their home countries. For reasons beyond the scope of this book, most of the detainees had been waiting there for decades. Many had aged and died there because deportation was a remote possibility. It was a place of forgotten aliens, unrecognized even by the official prison system. Once the three thousands captives from TU joined these forgotten and ignored, the unofficial prison was officially turned into a “temporary” prison. (Since then, it has housed subsequent generations of political detainees.)

中文译文

严格来说，邦肯监狱在官方名义上并不是一座监狱。它只是警察训练学校院区内的一栋楼，由警员看管，用来拘留等待遣返原籍国的非法移民。由于本书范围以外的某些原因，这些被拘留者大多数已经在那里等候了数十年。许多人年老并死在里面，因为遣返几乎不可能实现。这是一个被遗忘的外国人的处所，甚至不为正式的监狱系统所承认。当从法政大学被捕的三千人与这些被遗忘和忽略的人关在一起后，这座非正式监狱便正式变成了“临时”监狱。（此后它还关押了后续几代政治被拘留者。）

[P005]

英文原文

The conditions behind bars at Bangkhen reflected the changing political situations outside the prison. On October 6, 1976, when we got off the bus that had transported us from TU, we were living punching bags for the police, who lined up from the bus to the building entrance. In the first few days, before most people were released on bail, every cell was incredibly crowded and unsanitary. More than fifty people were confined in the three meter by five meter cell with me. The cell had a single open lavatory. It was horribly inhumane, perhaps a continuation of how we were treated at TU. In the immediate period after the massacre, angry police guards treated us as though we were the communist enemies of the country, the devils who had killed

policemen. Their angry outbursts, beating and kicking at prisoners as if punching bags, were common. We, the ringleaders, thought that this was the end of our lives. We survived day by day. Time no longer mattered.

中文译文

邦肯监狱里的状况，反映了监狱外不断变化的政治局势。1976年10月6日，我们从法政大学送来的巴士上下来时，沿着巴士到楼门的通道两旁站着警察，我们成了他们活生生的沙袋。在头几天、大多数人获保释之前，每间牢房都拥挤得不可思议，卫生条件极差。我所在的一间3米乘5米的牢房里关着五十多人，只有一个没有遮蔽的厕所。这极其不人道，或许只是我们在法政大学所受待遇的延续。屠杀后的最初一段时间，愤怒的狱警把我们当成国家的共产主义敌人、杀害警察的魔鬼。狱警常常暴怒，对囚犯拳打脚踢，仿佛他们是沙袋。我们这些所谓头目以为自己的生命就此终结，只能一天一天地活下去。时间已经没有意义。

[P006]

英文原文

After the majority of the detainees were released in the first few weeks, we had more space, but conditions were still far from humane. During the first few months, angry police guards still called some detainees out from their cells at night from time to time for beatings.5 A dozen of us ringleaders were put together in two cells separated from other prisoners because we were considered dangerous. We were denied visits for several months, so our cells remained locked day and night. Only the commander of the prison had the keys, so we were at least spared the guards' brutality. At one point, the police claimed that they had uncovered a plot for a prison riot. We the ringleaders were suspected and moved to another cell, where we were given only a limited amount of water each week. After the initial anticommunist hysteria had died down, life in the prison became quiet, even boring given that no reading or writing materials were allowed.

中文译文

最初几个星期大多数被拘留者获释后，我们有了更大的空间，但条件仍远非人道。在最初几个月里，愤怒的狱警仍不时在夜间把一些被拘留者从牢房里叫出来殴打。 我们十余名头目被安排在两间与其他囚犯隔开的牢房，因为我们被认为很危险。我们数月内不准接见访客，牢门因而昼夜紧锁。只有监狱指挥官掌握钥匙，所以至少我们免受普通狱警的暴力。有一次，警方宣称发现了监狱暴动阴谋。我们这些头目受到怀疑，被转移到另一间牢房，在那里每周只能获得有限的用水。最初的反共狂热逐渐平息后，监狱里的生活变得安静，甚至无聊，因为不允许带入任何阅读或书写材料。

[P007]

英文原文

The failed coup in March 1977 brought sudden changes in the prison. Some of the coup makers joined us at Bangkhen. Most of them were rich and powerful. A few were famous public figures who were treated according to their high social status. The police even allowed the privileged detainees to bring amenities to their cells, even their own mattresses. We received windfalls, including a larger cell and more relaxed restrictions. The police allowed us to roam around on

the same floor outside the cells in the daytime and gave us one hour every day for exercise in the open air on the roof-deck of the building. We were allowed weekly visitors, who could bring us outside food, far better than the prison food, and books such as romance novels and cartoons. In this more relaxed atmosphere, we befriended police officers, many of whom were part-time students to whom we offered tutorials. An experienced police sergeant at the prison explained to us candidly that the failed coup signaled a conflict within the military and the possibility that the ruling regime would be short lived. Political changes might come soon and, he joked, some of us might become their bosses in the future. Life in the cage became more humane.

中文译文

1977年3月未遂政变使监狱里的情况骤然改变。部分政变参与者也被关进邦肯。他们大多富有而有权势，少数还是知名公众人物，并按照他们的较高社会地位受到对待。警方甚至允许这些特权被拘留者把生活用品带进牢房，包括自己的床垫。我们也意外获益，包括换到更大的牢房、限制放宽。警方允许我们白天在同一楼层的牢房外走动，每天还让我们在屋顶露台的户外运动一小时。我们可以每周会客，访客能带进监狱外的食品——比监狱伙食好得多——以及言情小说、漫画等书籍。在更加宽松的氛围里，我们与警员建立了友谊，其中许多人是在职学生，我们还给他们补课。一位经验丰富的监狱警长坦率地向我们解释，未遂政变说明军方内部存在冲突，执政政权可能不会维持太久。政治变化或许很快到来；他开玩笑说，我们当中有人将来可能成为他们的上司。牢笼里的生活变得更加人道。

[P008]

英文原文

After the coup in October 1977 that ended the royalist regime of Thanin Kraivixian, the political winds blew in our favor. The October 6 trial caught public attention domestically and internationally. Life in prison became much better during the second year. The weekly (and daily) visitor time was generous. Restrictions on outside food and reading materials were fewer or nonexistent. We subscribed to a few daily newspapers. We wrote letters to friends and later some essays and articles for publication as well.6 We even convinced a police officer to bring in a small transistor radio for us. Our cell door was locked only at night, so we could exercise freely on the roof-deck and dry our clothes under the sun.

中文译文

1977年10月政变结束他宁·盖威迁的保皇派政权后，政治风向开始对我们有利。10月6日审判引起国内外关注。入狱第二年的生活好得多。每周（乃至每天）探访的时间相当充裕，对外来食品和阅读材料的限制更少，甚至完全取消。我们订阅了几份日报，写信给朋友，后来还写了些准备发表的随笔和文章。 我们甚至说服一位警察替我们带来一台小型晶体管收音机。牢门只在晚上上锁，因此我们可以自由地到屋顶露台运动，在阳光下晾晒衣物。

[P009]

英文原文

The sergeant had been right.

中文译文

那位警长说对了。

The Fall of the Right-Wing Royalist Regime

极右翼保皇派政权的垮台

[P010]

英文原文

The Thanin government represented the extreme political far right at the time. A judge who rose to the Supreme Court before 1976, Thanin was a staunch royalist and an anticommunist ideologue who had written several books on the dangers of communism to Thailand and appeared regularly on an infamous anticommunist television program before the massacre. As mentioned in chapter 2, when the would-be coup leader raised the idea of a coup to King Bhumibol at a private audience in February 1976, the king hinted at Thanin for prime minister after the coup. After Thanin was toppled from power in 1977, the king appointed him to the Privy Council immediately, where he remained until the king died in 2016. Many key members of Thanin's government were notorious for their far-right, royalist ideology. Among them, the best known was Samak Sundaravej, a demagogue who was highly popular among right-wing elements for his blunt, provocative retorts to the radicals. He was rewarded by the coup regime with the powerful position of interior minister. Many critics believe that he played an important role in the massacre, though he has persistently denied it. Throughout his long political career, including a brief stint as prime minister in 2008, Samak never shied away from boasting about his right-wing political views and from making provocative remarks about the massacre, even as late as 2008.

中文译文

他宁政府代表着当时政治上的极右翼。他宁在1976年前已成为最高法院法官，是坚定的保皇主义者和反共理论家，曾撰写数本关于共产主义对泰国危险的书籍，并在屠杀前经常出现在一档臭名昭著的反共电视节目中。正如第二章提到的，1976年2月，一名企图发动政变的领导人在私人觐见中向普密蓬国王提出政变设想时，国王暗示可以由他宁在政变后出任总理。1977年他宁被推翻后，国王立即任命他进入枢密院，他一直任职到2016年国王逝世。他宁政府的许多重要成员，都因其极右翼保皇主义意识形态而臭名昭著。其中最知名的是煽动家沙马·顺达卫（Samak Sundaravej），他以直率而挑衅地反驳激进派的言论，在右翼分子中深受欢迎。政变政权以权力极大的内政部长职位奖赏了他。许多批评者认为他在屠杀中扮演了重要角色，虽然他始终否认。在其漫长政治生涯中，包括2008年短暂担任总理期间，沙马从不回避夸耀自己的右翼政治观点，也从不回避对屠杀发表挑衅性的言论，甚至直到2008年仍然如此。

[P011]

英文原文

Thanin's right-wing ideology and authoritarian rule were suffocating, for example, the twenty-year plan to return to democracy, the government's daily newspaper so full of propaganda, the anticommunist propaganda aired on television and radio and in print, and the many social restrictions and public mandates in everyday life that accorded to royalist conservative ideology. The government quickly became unpopular. Taking advantage of this sentiment, and given the rift within the military, a coup was attempted in March 1977. Although it was put out down swiftly, popular discontent with the far-right government continued, intensifying from mockery to hatred. Moreover, in the post-massacre conditions in which thousands of students, who had a large number of sympathizers, had joined the CPT, the far-right anticommunist politics were like fuel on a blazing fire. As Mallet noted with supporting statistics, "armed clashes have become more frequent as the guerrillas take bolder measures as measured by the significant rise in the death tolls of the [government] forces."7 Given these factors, plus Thanin's growing alienation from the NARC, due partly to his confidence in the palace's support, another military putsch finally put an end to the far-right government that October.

中文译文

他宁的右翼意识形态和威权统治令人窒息，例如长达二十年的民主回归计划、充满宣传内容的政府日报、通过电视电台与印刷品进行的反共宣传，以及日常生活中符合保皇派保守意识形态的各种社会限制和公众行为规定。政府很快就失去人心。利用这种不满情绪，再加上军方内部的裂痕，1977年3月有人发动了政变。虽然政变迅速遭到镇压，公众对极右翼政府的不满却持续增加，从嘲笑发展到憎恨。更何况，屠杀后有数千名学生加入泰国共产党，这些学生还有大量同情者，极右翼反共政治简直是往熊熊烈火上浇油。正如马莱特（Mallet）依据统计数据指出的：“随着游击队采取更加大胆的行动，武装冲突变得更加频繁，这可以从［政府］部队死亡人数的显著上升看出来。” 考虑到这些因素，以及他宁越来越疏远国家行政改革委员会——部分原因是他自信得到王室支持——另一场军事政变终于在当年10月终结了极右翼政府。

[P012]

英文原文

Although the coup makers, led by General Kriangsak Chomanan, were mostly the same key members of the NARC, they were not as conservative or royalist as Thanin. Probably driven in part by the concern that they were losing ground to the CPT, several early measures and policies of the new regime were to remove the repressive measures that Thanin had put in place. One of the new regime's early orders was to amend the law of the military court to allow the accused to be represented by a lawyer.8 Although the order did not mention the October 6 trial, we were without question the first beneficiaries of the order. The trial had enormous implications for many political stakeholders at the time, not merely for the country's stature in the international community, but also for the country's future in regard to the fight against communism and the prospects for democracy.

中文译文

虽然以江萨·差玛南（Kriangsak Chomanan）将军为首的政变者，大多仍是国家行政改革委员会的主要成员，但他们并不像他宁那样保守或奉行保皇主义。部分可能由于担忧在与泰国共产党的

斗争中失去优势，新政权最早采取的若干措施与政策，就是取消他宁实施的压制措施。新政权最早的命令之一是修改军事法庭法律，允许被告由律师代理。　　虽然命令没有提到10月6日审判，我们无疑是最早的受益者。这场审判对当时许多政治利益相关者都有重大影响，不仅关乎泰国在国际社会中的地位，也关乎国家反共斗争的未来和民主前景。

The Bangkok 18 Case

曼谷十八人案

[P013]

英文原文

By the time the Bangkok 18 were charged in August 1977, dissatisfaction with the Thanin government had intensified. The hysteria against the radicals and communists had subsided, though the authoritarian NARC was still in control and fear of communism remained. The skirmishes with the CPT became a staple of everyday news. Stories and news about students in the jungles also appeared occasionally in public, but many more circulated informally on campuses and in the homes of thousands of educated families. The news of serious charges leveled at young students in their late teens and early twenties by the military court was a major event domestically and reported internationally as well. In the eyes of the world, the trial was cruel because it was a political trial of victims who had survived a brutal massacre. A week later, two petitions to the government regarding the October 6 trial were submitted by the Catholic community in Thailand, relaying the concerns of the international community. They suggested that the government move the trial from the military to a civilian court and urged the government to release us on bail.9 Many more petitions followed from domestic as well as international groups.

中文译文

1977年8月曼谷十八人被起诉时，对他宁政府的不满已经加剧。针对激进派与共产主义者的歇斯底里情绪有所消退，尽管威权的国家行政改革委员会仍然掌权，对共产主义的恐惧也依然存在。与泰国共产党的小规模武装冲突成了日常新闻的固定内容。关于丛林中学生的故事和消息偶尔也会公开出现，但更多是在校园以及成千上万受过教育的家庭中非正式地流传。军事法庭以严重罪名起诉十几岁末、二十出头的年轻学生，是国内的一件大事，也受到国际媒体报道。在世界眼中，这场审判是残酷的，因为这是对一场残暴屠杀的幸存受害者进行的政治审判。一周后，泰国天主教团体向政府提交两份关于10月6日审判的请愿书，传达国际社会的关切。他们建议政府把审判从军事法庭移交普通法院，并敦促政府准许我们保释。　　此后国内外团体又提出了更多请愿。

[P014]

英文原文

The start of the trial in military court on September 5, 1977, opened up a space for public discourse. It was the first public political gathering since the massacre. The court room (inside the compound of the Defense Ministry) was crowded with journalists and ordinary observers; hundreds, perhaps thousands, more people flocked outside along the road into the ministry.10 It appeared that even the Thanin government did not anticipate the crowd (neither did we, the

prisoners) given that the NARC's ban on political gatherings was still in place. More ironies were to come because under both the 1976 and 1977 coup regimes political gatherings were forbidden but court attendance was allowed. After their first court appearance, the defendants requested that the court find a larger room at an accessible location to accommodate the public. By that time, the new government was in power. In the new political atmosphere, the court agreed, moving the trial to another military compound on the outskirts of Bangkok to a significantly larger room in a building surrounded by an open space that could accommodate hundreds of people.11 Moreover, after the first appearance, many people, including Seni, the prime minister in 1976, began to speak out. The massacre, already a year old, was once again in the media, though references to it remained ambiguous and cryptic.

中文译文

1977年9月5日军事法庭开庭，为公共话语打开了一个空间。这是屠杀以来第一次公开的政治集会。法庭（设在国防部院内）挤满记者和普通旁听者；还有数百、或许数千人聚集在外面、通向国防部的道路上。　　国家行政改革委员会对政治集会的禁令仍然有效，因此看来连他宁政府也没有预料到如此多的人到场（我们这些囚犯也没有想到）。更大的反讽还在后面：1976年和1977年两次政变政权都禁止政治集会，却允许公众旁听庭审。第一次出庭后，被告要求法庭换到一个容易抵达、且更大的场所，以容纳公众。那时新政府已掌权。在新的政治氛围下，法庭同意将审判移到曼谷郊区另一处军方设施，那里一栋建筑里有大得多的审判室，周围还有能容纳数百人的开放场地。　　此外，第一次庭审后，许多人开始公开发言，其中包括1976年的总理社尼。已经过去一年的屠杀再次出现在媒体上，虽然提及它的方式仍模糊而隐晦。

[P015]

英文原文

Many civic organizations called for justice at the October 6 trial. The most significant one was a petition by 632 people, many of whom were prominent public figures from various professions, organized by Buddhist activists on October 26, 1977. Rather than calling for a civilian court for the Bangkok 18, the petition called for the amnesty of all political prisoners, including the Bangkok 18 and hundreds of those who had been detained without charge or trial under the Thanin government for being, in its terms, "Persons who are Endangering Society."12 The amnesty, it argued, was necessary for reconciliation of the country, which had been torn by serious conflicts and division for some time that had worsened under the Thanin regime. In addition, in late November 1977, the new coup regime announced an amnesty for all those involved in the March 1977 abortive coup. This prompted many more calls and petitions urging the government to do the same for the Bangkok 18 and other political prisoners.13 Most of them cited common reasons, namely, national unity and reconciliation. The exhausted public seemed willing to let bygones be bygones.

中文译文

许多公民组织呼吁在10月6日审判中实现正义。其中最重要的一份请愿书，由佛教活动分子组织，于1977年10月26日提出，共有632人署名，其中不少是各行各业的著名公众人物。请愿书并不要求把曼谷十八人案移交普通法院，而是要求大赦所有政治犯，包括曼谷十八人，以及数百名在他宁政府治下被当成所谓"危害社会的人"，未经起诉或审判就遭拘押的人。　　请愿书认为，大赦

对于这个国家的和解必不可少，因为国家长期被严重冲突与分裂撕裂，而且在他宁政权下情况更为恶化。此外，1977年11月底，新政变政权宣布赦免所有参与1977年3月未遂政变的人。这促使更多人呼吁和请愿，敦促政府以同样方式对待曼谷十八人及其他政治犯。　　他们提出的理由大多相同，即民族团结与和解。疲惫不堪的公众似乎愿意让过去的事情过去。

[P016]

英文原文

Apart from the changing conditions of domestic politics, many international human rights organizations also took up the Bangkok 18 case. Further, several foreign governments expressed their concerns to the Thai government and sent representatives to attend the trial. In response to this attention, the government tread more carefully, wanting to avoid being seen as barbaric. In addition to allowing lawyers to represent us, the six of us from Bangkhwang no longer had to come to court in chains as if we were serious criminals. In early 1978, the Carter administration, which had notified the Thai government of its attention to the case since mid-1977, began to show stronger interest in the trial.14 Staff from the US Embassy made regular appearances at the trial, and a special representative from Washington discussed the issue with the Thai government and visited the detainees in person (another huge factor in the improved conditions at the prison). The world's watchful eyes remained on the Bangkok 18 throughout the trial.

中文译文

除了国内政治环境的变化，许多国际人权组织也开始关注曼谷十八人案。此外，几个外国政府向泰国政府表达关切，并派代表出席庭审。面对这样的关注，泰国政府行事更加谨慎，希望避免被看作野蛮。在允许律师为我们代理之外，来自邦宽监狱的六个人也不必再像重罪犯一样戴着锁链出庭。1978年初，自1977年中期起便已通知泰国政府关注本案的卡特政府，开始对审判表现出更强烈的兴趣。　　美国大使馆工作人员定期出现在法庭上，一名来自华盛顿的特使与泰国政府讨论此事，还亲自探访被拘留者（这也是监狱条件改善的另一个重要因素）。整个审判期间，世界始终密切注视曼谷十八人。

The Trial and Its Ironies

审判及其反讽

[P017]

英文原文

The ten charges in the indictment were drawn from specific actions. The first was communist activities, advocating the violent overthrow of the Thai state—the government, economy, and social institutions— while propagating the glory of the communist countries, particularly the People's Republic of China. The second was lèse majesté in the mock hanging of the crown prince. Third, the accused were charged in the deaths of two policemen and injuring a dozen more. The death of forty protesters in the same incident was not mentioned.15 The indictment also did not mention the demonstration or gathering at Thammasat, let alone any hint of a massacre. The defendants, of course, denied all charges.16 We argued at length that we were "democratic rebels against dictatorship," that the skit had nothing to do with the crown prince,

and that we were victims, not perpetrators, of the “massacre” (kan lom sanghan mu). “The October 6 incident was a massacre . . . a most cruel and barbaric one, unprecedented in Thai history . . . [followed by] the arrests of the survivors,” we declared.17

中文译文

起诉书中的十项罪名，来自一些具体行为。第一项是共产主义活动，即主张以暴力推翻泰国国家——政府、经济和社会制度——同时宣扬共产主义国家，尤其是中华人民共和国的光荣。第二项是因模拟绞死王储而涉嫌冒犯君主罪。第三项指控被告杀害两名警察、伤害另外十余名警员。起诉书完全没有提到同一事件中40名抗议者的死亡。　　它也没有提到法政大学的示威或集会，更不用说暗示发生了一场屠杀。当然，被告否认全部罪名。　　我们详细辩称自己是“反对独裁统治的民主反抗者”，那出戏与王储无关，我们是“屠杀”（kan lom sanghan mu）的受害者，而不是加害者。我们声明：“10月6日事件是一场屠杀……一场泰国历史上前所未有、最为残忍野蛮的屠杀……［随后发生的是］幸存者被逮捕。”

[P018]

英文原文

The prosecutor planned to call a total of eighty-two witnesses for the trial. Forty-four were police officers: nineteen from the local district of the Metropolitan police where TU was located, four from other districts, nine of the so-called riot police, eight Border Patrol Police (BPP), two from the Crime Suppression Unit, and two from the Special Branch or the political police. Fourteen were professors and lecturers from TU, including several right-wing ones. The remainder included four professors from other universities, two leaders of labor organizations, an expert from the Internal Security Operation Command (ISOC), three reporters, former Prime Minister Seni Pramoj and another minister from his government, and five medical examiners from various hospitals. Two witnesses were leftist activists who, based on their statements to the police in late 1976, would testify against the radicals.18 During the twenty-nine court hearings between January 23 and 14 September 1978, only eleven appeared and testified in court: two labor leaders, the ISOC expert, a political police officer who kept records of the activities of radical students between 1973 and 1976, and members of the first police group that raided TU on October 6, all of whom appeared on TV5 that morning, including Colonel Salang Bunnak and two BPP officers.19

中文译文

检方原计划传唤共82名证人。其中44名是警察：19名来自法政大学所在地的曼谷警察分区，4名来自其他分区，9名所谓防暴警察，8名边境巡逻警察（Border Patrol Police，BPP），2名来自犯罪打击部门，2名来自特别支部，即政治警察。另有14名法政大学的教授与讲师，包括一些右翼人士。其余证人包括4名其他大学的教授、2名劳工组织领导人、1名内部安全行动指挥部（Internal Security Operation Command，ISOC）专家、3名记者、前总理社尼·巴莫（Seni Pramoj）及其政府的另一名部长，以及5名来自不同医院的法医。另有两名左翼活动分子；根据他们在1976年底向警方作的陈述，他们会作出不利于激进派的证词。　　在1978年1月23日至9月14日之间的29次庭审中，实际上只有11人出庭作证：2名劳工领袖、那名内部安全行动指挥部专家、1名记录1973年至1976年激进学生活动的政治警察，以及10月6日最早冲进法政大学的警察小组成

员。这些警察都曾在当天上午出现在TV5的画面中，包括沙朗·布那上校和两名边境巡逻警察。

[P019]

英文原文

Only in rare instances did these witnesses mention any of the defendants. None of them recognized the defendants, except perhaps Sutham Sangprathum, the National Student Center of Thailand leader whose name frequently appeared in the daily media before the massacre. The police witnesses recounted how they had been attacked but said nothing specific about any of the defendants. Even the political officer who collected materials about student activities was unable to explain unambiguously which acts, talks, books or pamphlets violated the anticommunist law, let alone whether any of the defendants had participated in such acts. In fact, we learned how poorly the police spies did their job. Their notes from several public forums were incomprehensible, names were unrecognizable. Their records showed how superficial, disorganized, and perhaps unprepared the political officer was—making them more frightening rather than less so. On the other hand, given that most of the police witnesses had been in action that morning, their testimony was informative; we learned concrete details about what had happened. We learned, for example, that the BPP received the order to deploy during the night, many hours before the heavy shooting began. We saw in court many photos of the incident for the first time because they had been censored at the time. Many accounts that circulated informally or underground among the radical students were related in court and recorded by the judge. Most important, what we heard in the courtroom was also heard by the hundreds of people outside, as well as the public at large, who could read the same details the next morning because the testimony was reported by the media throughout the trial. Further comments and discussions about the testimony appeared regularly in the dailies and news magazines for many months in 1978. When witnesses described some of the photos of the heinous acts with remarks like “these were utterly cruel acts, incredibly horrifying acts,” the public heard and read about them too.20

中文译文

这些证人只有极少数时候提到任何一名被告。没有人认出被告，可能只有素探·桑普拉吞（Sutham Sangprathum）除外。他是泰国全国学生中心的领导人，在屠杀前经常见诸每日媒体。警察证人讲述自己如何遭到攻击，却没有具体提及任何被告。甚至那名收集学生活动材料的政治警官，也无法清楚解释哪些行为、演讲、书籍或小册子违反了反共法律，更不用说证明被告中有人参加了这些行为。事实上，我们发现警方间谍的工作有多么糟糕。他们记录的几场公共论坛的笔记根本难以理解，姓名也辨认不出。这些记录暴露出那名政治警官的工作何等肤浅、无序，甚至可能毫无准备——这让他们显得更加可怕，而不是更不可怕。另一方面，由于多数警察证人那天上午都在行动，他们的证词也提供了有价值的信息，使我们知道事件发生时的一些具体细节。例如，我们得知边境巡逻警察早在夜间就接到部署命令，比猛烈枪击开始早了许多小时。我们在法庭上第一次看到了许多事件照片，因为这些照片当时受到审查。许多在激进学生中非正式或秘密流传的叙述，都在法庭上被讲述，并由法官记录。最重要的是，法庭里讲述的内容，也能被外面的数百人和广大公众听到；由于媒体在整个审判期间报道证词，公众次日早晨就能读到同样的细

节。1978年的许多个月里，日报和新闻杂志还经常发表对证词的进一步评论与讨论。当证人在描述某些暴行照片时说“这些行为极其残酷，令人难以置信地恐怖”，公众同样听到、读到了这些话。

[P020]

英文原文

Although we, the prisoners, did not anticipate our release any time in the near future, as the trial slowly dragged on, with seventy more witnesses yet to testify, we became much more relaxed. In my view, the October 6 trial was an ironic commentary on Thailand’s political conditions at the time in three respects. First, although the ban on political gathering had been in place since the coup in 1976 and continued after the 1977 coup, the gathering at the court was a stark exception. Thanks probably to the international pressures against a secret venue, the trial was open to the public in a space where hundreds of people could gather legally weekly or twice weekly. Although the location of the court house was not convenient (inside a military compound outside Bangkok that offered poor public transportation), people attended in large numbers. Most stayed in tents outside, enjoying the open political discussions that were prohibited elsewhere. It was safe too, given the military protection from the right-wing militants.

中文译文

虽然我们这些囚犯并不指望近期获释，但随着审判缓慢拖延，仍有70多名证人尚待作证，我们的心情反而放松了许多。在我看来，10月6日审判在三个方面构成了对泰国当时政治状况的反讽。首先，自1976年政变以来实施的政治集会禁令，在1977年政变后继续有效，但法院里的聚集却成为一个鲜明例外。或许由于国际社会反对秘密庭审所施加的压力，审判向公众开放，在这里，数百人可以每周或每周两次合法聚集。法院位置很不方便——位于曼谷城外一处公共交通不便的军方院区——但仍有大量民众前来。大多数人待在外面的帐篷里，享受在其他地方遭禁止的公开政治讨论。这里也很安全，因为军方的保护能防止右翼武装分子的袭击。

[P021]

英文原文

Second, given the fear of repercussions and the post-massacre repression, the October 6 incident was a highly sensitive topic and seldom discussed in public at the time. The trial became an occasion in which the incident was discussed legally, publicly, in great detail, and at great length. It was more informative than any other sources at the time and often critical of the state. Unlike the underground network of the radicals, the military court provided an open public sphere for discourse about the massacre that extended far beyond the courtroom due to media coverage of the trial.

中文译文

第二，考虑到人们害怕后果，以及屠杀后的压制，10月6日事件当时是极其敏感的话题，很少得到公开讨论。这场审判却成为一个机会，让事件以法律形式得到公开、详尽而持久的讨论。它提供的信息超过当时的任何其他来源，而且往往对国家持批判态度。与激进派的地下网络不同，军事法庭为关于屠杀的话语提供了一个开放的公共领域；由于媒体报道审判，这个领域的范围远远超

出了法庭。

[P022]

英文原文

Third, and most important, the October 6 trial became a public trial of the perpetrators of the massacre. Even though none of them was charged, and the massacre was not even mentioned in the indictment, the trial exposed some shocking facts, implicated unidentified perpetrators, and hinted at the narrative of the victims. Although court procedures were not suited to uncover a comprehensible narrative, the testimony suggested a counternarrative. It also confirmed the growing public perception that the state's narrative was untruthful, that the entire trial of the Bangkok 18 was unfair and evidence of injustice, that unspeakable wrongdoing had been committed by somebody else.21 The more sympathy that arose for the Bangkok 18, the stronger the implication that the real perpetrators were elsewhere, and curiosity all built to know what actually happened and who did it on the morning of Wednesday, October 6, 1976.

中文译文

第三，也是最重要的一点，10月6日审判变成了对屠杀加害者的公开审判。尽管他们当中无人被起诉，起诉书甚至没有提到屠杀，审判还是披露了一些惊人的事实，把尚未确认身份的加害者牵涉进来，并暗示了受害者的叙述。虽然法庭程序并不适合揭示完整而可理解的叙述，证词仍提示了一种反叙事。它还证实了公众日益增长的认识：国家的叙述并不真实，整场曼谷十八人审判不公正，是不义的证明，另有人犯下了难以言说的罪行。　　公众越同情曼谷十八人，就越强烈地暗示真正的加害者另有其人，人们也越来越好奇，想知道1976年10月6日星期三早晨到底发生了什么、是谁做的。

[P023]

英文原文

"Had the defense witnesses," Tyrell Haberkorn writes, "given testimony, the prosecution, and the repressive parts of the state behind it, may have had a great deal to fear. The actual events of the morning of 6 October . . . would have been revealed."22 In fact, the trial had not yet revealed much. Only eleven of the eighty-two witnesses for the prosecution had testified. But the ironies of the trial were probably too troubling and perhaps too dangerous to those in power, almost all of whom could be implicated in the massacre in one way or another.

中文译文

泰雷尔·哈伯康（Tyrell Haberkorn）写道："如果辩方证人［有机会］作证，检方以及其背后国家机器中的压制部门，可能就有很多值得恐惧的事情。10月6日早晨的真实事件……将会得到揭示。"　　事实上，审判当时还没有揭示太多。82名控方证人中只有11人已经作证。但审判所包含的反讽，对掌权者而言或许太令人不安，甚至太危险，因为他们几乎所有人都可能以某种方式牵涉进屠杀。

The Amnesty

大赦

[P024]

英文原文

The idea of an amnesty was first floated in public by the petitions of civic groups. It was reinforced in late 1977 when the government granted amnesty to the prisoners of the abortive coup of March 1977. The defendants of the October trial, many argued, were probably more legitimate candidates for amnesty than the makers of the failed coup. In February 1978, when the second witness was testifying in court, Prime Minister Kriangsak raised the possibility of the amnesty: "If the court decides to punish those eighteen people, the government will be ready to pass an amnesty bill that day."23 The idea gained momentum again in mid-1978, and it appeared that the government supported it. Then, in less than one week in mid-September, the idea suddenly turned into a draft bill that the legislative body read, revised, and passed in a single day, on September 15: "Amnesty for Those Who Committed Wrongdoing in the Demonstrations at the Thammasat University between 4 and 6 October 1976."24 Prime Minister Kriangsak emphasized in the legislative council as well as in public that the amnesty was the king's idea and everybody should be grateful to His Majesty's benevolence.25 The next day, the Bangkok 18 were brought to the military court for the last time to listen to the judge's reading of the amnesty bill. The trial was over. We were freed.

中文译文

大赦的想法最早由公民团体通过请愿公开提出。1977年底政府赦免1977年3月未遂政变中的囚犯，使这一主张得到加强。许多人认为，与未遂政变的参与者相比，10月6日审判的被告可能更有资格获得大赦。1978年2月，第二名证人正在庭上作证时，江萨总理提出大赦的可能性："如果法院决定惩处这18个人，政府当天就准备通过一项大赦法案。" 这一想法在1978年中期再次获得动力，而且看来政府予以支持。随后，9月中旬不到一个星期之内，这个想法突然变成一份法案草案，立法机关于9月15日在一天之内完成审读、修改和通过，法案名为《赦免1976年10月4日至6日期间在法政大学示威中犯下不当行为者法案》。 江萨总理在立法委员会和公共场合都强调，大赦是国王的主意，所有人都应感谢陛下的仁慈。 第二天，曼谷十八人最后一次被带到军事法庭，听法官宣读大赦法案。审判结束了，我们获得自由。

[P025]

英文原文

The maneuver for the amnesty was surprising to those of us in prison as well, though we were not kept in the dark as much as the public was. We the prisoners heard the rumor from a journalist a few weeks before it happened. Then, about a week before the bill was passed, the exciting rumor became real when a representative of Kriangsak came to visit us at Bangkhwang and Bangkhen. Phichai Watsanasong was a famous television personality at the time, respected for his knowledge and journalistic expertise in international affairs. But he had been brought to Bangkhen, then later moved to Bangkhwang, for his involvement in the March 1977 abortive coup. He was one of our privileged prisonmates at both places before his release in the amnesty of late 1977. As reported recently by one of the Bangkok 18 about their meeting at Bangkhwang, Phichai said, "the government wants to end the war with students," therefore the government will grant amnesty to those in the October 6 trial.26 The meeting at Bangkhen was the same in substance. I recall, however, a few additional issues from that encounter. First,

Phichai hinted at the difficulty Kriangsak was facing in pushing for the amnesty because opposition to the plan was significant. Second, he made a strong suggestion—almost a warning—that we must return to school and focus on our studies. We understood it as a warning to not join the CPT. In pushing for the amnesty, according to Phichai, Kriangsak had assured his opponents that none of us was communist, implying that if we did something that hurt Kriangsak's credibility, trouble might follow. Phichai's allusion to important opposition and Kriangsak's overemphasis on gratitude to the palace hinted at who the unnamed opposition to the amnesty was. Paul Handley mentions that King Bhumibol had stalled the proposed amnesty for a year.27 Somsak Jeamteerasakul later revealed a note from the deputy royal secretary at the time, dated September 6, 1978, conveying the king's concern that the trial could drag on for years and could jeopardize the country's security. The king, according to the royal secretary, urged the conclusion of the trial and the punishment of the guilty ones as soon as possible (tatsin longthot phuphit doia reio), who should then ask for pardon from the king. Somsak argues that the king probably preferred the royal pardon after the sentence, rather than the amnesty without the ruling, which prevented the show of royal benevolence.28

中文译文

大赦的运作也让监狱里的我们感到意外，虽然我们并不像公众那样完全被蒙在鼓里。事件发生前几周，我们这些囚犯从一名记者那里听到了传闻。随后，在法案通过前约一周，江萨的一位代表前来邦宽和邦肯探视我们，令人激动的传言终于变成现实。披猜·瓦塔那颂（Phichai Watsanasong）是当时著名的电视人物，因国际事务知识和新闻专业能力受到尊重。但他因为参与1977年3月未遂政变，先被关进邦肯，后转到邦宽。在1977年底大赦获释前，他曾在两地都是享有特权的狱友之一。根据最近一名曼谷十八人案当事人对邦宽会面的报道，披猜说：“政府希望结束与学生的战争”，因此政府会赦免10月6日审判中的被告。　　邦肯的会面在实质内容上相同。不过，我还记得那次会面中另外几个问题。首先，披猜暗示江萨推动大赦面临困难，因为反对该计划的力量很大。其次，他提出强烈建议，几乎是一种警告：我们必须返回学校，把注意力放在学业上。我们理解这是警告我们不要加入泰国共产党。据披猜说，江萨为了推动大赦，向反对者保证我们当中没有人是共产主义者；言下之意，如果我们做出损害江萨信誉的事情，麻烦可能随之而来。披猜提到的重要反对力量，以及江萨过分强调对王室的感激，都暗示了这股未被指名的反对力量来自何方。保罗·汉德利（Paul Handley）提到，普密蓬国王曾使拟议中的大赦推迟一年。　　索姆萨·坚提拉沙恭（Somsak Jeamteerasakul）后来公布一份时任副王室秘书的便笺，日期为1978年9月6日。便笺转达了国王的担忧：审判可能拖延数年，并危及国家安全。据王室秘书所述，国王敦促尽快结束审判并惩罚有罪者（tatsin longthot phuphit doia reio），然后由他们向国王请求赦免。索姆萨认为，国王可能更倾向于判决之后由王室赦免，而不是在未作判决时直接大赦，因为后一种方式无法彰显王室的仁慈。

[P026]

英文原文

It was not clear why an idea that had been around for months was suddenly taken up and speedily pushed through by a maneuver that seemed opportunistic rather than normal legislative procedure. It was as if the opening for this high-stakes political action was a brief one. Opponents to the amnesty appeared during the legislative deliberation. Only a few openly

and furiously argued against it, but a larger number opposed it by walking out and not voting rather than voting against it. The bill was passed with only one negative vote, but amid a conspicuous silence from the military officers who formed the majority of the house.29 Afterward, an anonymous call came in for the Village Scouts to protest against the amnesty, attacking Kriangsak as a communist who had tried to destroy the heroic legacy of the right-wing factions on October 6, 1976.30

中文译文

为什么酝酿了几个月的想法，会突然以看起来更像机会主义操作、而不是正常立法程序的方式，被迅速提出并通过，原因并不清楚。仿佛这次利害重大的政治行动只有一个极其短暂的机会窗口。大赦的反对者在立法审议期间现身。只有少数人公开而激烈地反对，但更多人以退席和不投票、而不是投反对票的方式表达反对。法案只收到一张反对票而获得通过，但在占议会多数席位的军官中，存在一种引人注目的沉默。　　此后，有匿名者致电乡村童子军，号召他们抗议大赦，攻击江萨是共产主义者，说他试图摧毁右翼派别于1976年10月6日创造的英雄遗产。

[P027]

英文原文

Let us look closely at the amnesty bill. The preamble of the bill reads as follows:

中文译文

现在让我们仔细看看大赦法案。法案序言写道：

[P028]

英文原文

Considering that the trial related to the demonstration[s] at Thammasat between October 4 and October 6 1976, has gone on long enough and would continue for a greater period, if the case proceeded until completion, it would cause the defendants to lose their educational and professional future. Considering also that the demonstration and other wrongdoings took place due to the failure to understand the true situation because of their youth and their lack of experience [immaturity]. In addition, this government is determined to foster harmony [khwam samakkhi] of people in the nation. Given all these reasons, it is therefore appropriate to forgive them for their wrongdoings. This would give the opportunity for those who had committed wrongdoing, both the ones who are being prosecuted and those who are still at large, to behave in the right ways and to return to act in the common interest for the prosperity of the nation.31

中文译文

考虑到与1976年10月4日至6日法政大学示威［活动］有关的审判已经进行了很长时间，如案件继续审理直至结束，还将持续更长时间，致使被告失去未来的受教育与职业机会。又考虑到示威及其他不当行为的发生，是由于当事人年纪尚轻、缺乏经验［不成熟］，未能理解真实情况。此外，本届政府决心促进国内人民的团结（khwam samakkhi）。基于以上一切原因，赦免其不当行为是适当的。这将使那些犯下不当行为的人，无论正在被起诉还是仍然在逃，都有机会改正行为，重新为了国家繁荣的共同利益而行动。

[P029]

英文原文

The most important substance is in Article 3:

中文译文

法案最重要的实质内容在第3条：

[P030]

英文原文

Article 3: All actions by whomever, which took place or were related to the demonstrations inside Thammasat University between October 4 and October 6, whether they were committed inside or outside the university, and whether the actions were taken by a principal figure, a supporter, a person acting for another, or a person who was used, if the actions were unlawful, the person is absolved from wrongdoing and all responsibility.

中文译文

第3条：凡任何人于10月4日至6日期间，在法政大学内部发生或与校内示威有关的全部行为，无论行为发生在大学内外，也无论行为人是主犯、支持者、代理他人行动者或受人利用者，只要这些行为违法，该人即免于不当行为及一切责任。

[P031]

英文原文

In Article 4, the bill stipulated the military court to release all the accused, the Bangkok 18+1; in Article 5, the bill prohibited those amnestied to complain or demand any rights or benefits.

中文译文

法案第4条规定，军事法庭必须释放全部被告，即曼谷18+1人；第5条则禁止获得大赦的人申诉或要求任何权利与利益。

The Specter of the Massacre

屠杀的幽灵

[P032]

英文原文

A close reading of the bill yields the following observations. First, the main reasons for the amnesty were on the one hand, the future of the accused, and on the other hand, national harmony or unity (khwam samakkhi). Second, the amnesty was for both the Bangkok 18 and those who were still at large. Third, the bill passed a firm and clear judgment, despite the unfinished trial, that the accused were wrongdoers. It inscribed into law that the radicals were guilty but were freed due to the mercy of the state. Fourth, the incident was, in the words of the bill, the “demonstration[s]” at Thammasat. The Thai language does not clarify whether a word is singular or plural. Only the period of between October 4 and October 6, 1976, covers the wrongdoings beyond the morning of October 6. Fifth, Article 3 makes it more clear that the demonstrations are plural, covering both the one inside and the one outside the university.

Sixth, also according to Article 3, the wrongdoings were “all actions” and the wrongdoers were “whomever” in the broadest scope, even though the preamble specifies only the accused on trial. Seventh, the wrongdoing was only vaguely identified as the acts “related to” the demonstration or demonstrations. From its title to the last word, no explicit mention is made of any act of killing or the many deaths, let alone the massacre.

中文译文

仔细阅读法案，可以得出以下观察。第一，大赦的主要理由，一方面是被告的未来，另一方面是国家和睦或团结（khwam samakkhi）。第二，大赦既适用于曼谷十八人，也适用于仍然在逃的人。第三，尽管审判尚未结束，法案却作出了坚定明确的判断：被告是犯错者。它以法律形式铭刻了这样一种说法，即激进派有罪，只是因为国家的仁慈而获释。第四，用法案自己的话说，这件事是法政大学的“示威［活动］”。泰语并不明确区分名词单数与复数。只有1976年10月4日至6日这一时间段，表明不当行为并非仅限于10月6日早晨。第五，第3条更清楚地表明示威可能是复数，既包含大学内部的示威，也包含大学外部的示威。第六，同样根据第3条，“不当行为”在最宽泛的意义上指“一切行为”，行为人则是“任何人”，尽管序言只具体提到正在受审的被告。第七，不当行为只被模糊界定为与示威“有关”的行为。从标题到最后一个字，法案没有明确提及任何杀戮行为或大量死亡，更不用说屠杀。

[P033]

英文原文

Eighth, whether it was meticulously crafted with a hidden agenda, or carelessly written to include numerous ambiguities, the amnesty bill actually absolved “whomever” killed, tortured, gored, raped, burned, and desecrated the bodies and committed other unforgivable acts during the massacre—which was not even mentioned, as if it never happened. Ninth, by giving an iron-clad guarantee that the perpetrators would be forever free from any form of retribution, Article 5, as Haberkorn puts it, “means both that the students who were pardoned could not claim compensation for wrongful arrest, but also, this perhaps also meant that they could not then accuse state officials of committing violent crimes at Thammasat University.” As a lawyer of the trial remarked in an interview, “This case did not end with the charges being dismissed. Once testifying began, the 6 October amnesty law was passed and it ended everything. They claimed to forgive the students, but in actuality, they forgave themselves because a lot of students were killed. Everything ended due to the amnesty.”32

中文译文

第八，无论法案是经过精心设计、隐藏着目的，还是草率起草，以致留下大量模糊之处，它实际上都赦免了在屠杀中杀人、施加酷刑、刺伤、强奸、焚烧、侮辱尸体及犯下其他不可饶恕行为的“任何人”——而屠杀本身甚至未被提及，仿佛根本没有发生。第九，第5条以坚不可摧的保证，使加害者永远免于任何形式的追究。正如哈伯康所说，这“不仅意味着获得赦免的学生无法因为错误逮捕而要求赔偿，也可能意味着他们后来无法指控国家官员在法政大学犯下暴力罪行”。一名审判律师在访谈中评论说：“这起案件并不是以撤销指控结束的。一旦证人开始作证，10月6日大赦法就通过了，它结束了一切。他们声称宽恕学生，但实际上宽恕了他们自己，因为许多学生被杀害了。由于大赦，一切都结束了。”

[P034]

英文原文

Haberkorn has alerted us to the “hidden transcript” of the amnesty of the October 6 massacre. What was not said, she writes, indeed “reflects a sharp presence.”33 Although the Bangkok 18 were the apparent beneficiaries, the amnesty bill essentially provided impunity for the perpetrators and the state. In contrast with the proposition of hidden transcripts as an art of resistance to domination, the presence in absentia for this case were those disguised meanings and silence about the state’s crime and its impunity.34 History knows who the true beneficiaries of the bill were. It was an impunity bill.

中文译文

哈伯康提醒我们注意10月6日屠杀大赦中的“隐藏文本”（hidden transcript）。她写道，那些没有说出来的东西，实际上“呈现出鲜明的在场”。 虽然表面上的受益者是曼谷十八人，大赦法案实质上却为加害者和国家提供了有罪不罚的保障。与把隐藏文本视为反抗统治的艺术的观点不同，本案中“缺席的在场”是那些被伪装起来的意义，以及对国家罪行及其有罪不罚状态的沉默。 历史知道法案真正的受益者是谁。这是一项有罪不罚法案。

[P035]

英文原文

In fact, as Haberkorn points out, two, not one, amnesty bills addressed the wrongdoings that took place on October 6, 1976.

中文译文

事实上，正如哈伯康指出的，涉及1976年10月6日不当行为的大赦法案不是一项，而是两项。

[P036]

英文原文

On December 24, 1976, the NARC promulgated “the “Amnesty for Those Who Seized the Government Power of the Country on 6 October 1976 Act.” It, like the 1978 bill, did not mention the massacre. In it also, again like the 1978 amnesty bill, the massacre’s presence was strong despite its absence. No record or concrete information about the drafting process or the deliberations among the drafters in 1978 is available, only the final text of the bill. We do have detailed information about deliberations throughout the drafting of the 1976 bill, however. The following is the amazing story of the 1976 amnesty bill in brief.35

中文译文

1976年12月24日，国家行政改革委员会颁布了《赦免1976年10月6日夺取国家政权者法案》。与1978年的法案一样，它没有提到屠杀。也和1978年大赦法一样，屠杀尽管缺席，却强烈地在场。我们找不到1978年法案起草过程或起草者内部审议的记录和具体资料，只有法案最终文本；不过，关于1976年法案整个起草过程中的审议，我们有详细资料。以下简要讲述1976年大赦法案令人惊讶的故事。

[P037]

英文原文

Article 29 of the NARC's interim constitution had granted amnesty to those involved in the coup in the evening of October 1976, yet concerns arose that its language provided only limited coverage, both in terms of which individuals and what actions, related to the seizure of power on that day. The deliberations during the drafting of this bill, then, were about the scope of the acts to be covered (what they were and when and where they took place), what the wrongdoings were, and who committed them. The main question revolved around whether the events in the morning of that day—the massacre and the demonstration against the elected government— should be considered part of the coup, thereby covered by the amnesty as well. Yet, at that time, only a few months after the jubilant victory over the communists, the drafters of the 1976 bill wanted to ensure that those behind bars would not receive amnesty. In both the deliberations among the drafters of the bill and the discussions in the legislative body, the massacre and the demonstration against the Seni government were discussed. In their view, all the events of that morning were related, and they were related to the coup in the evening as well.36 Despite that awareness, the massacre was neither explicitly mentioned or suggested. The 1976 amnesty bill was put in place, but as time passed questions lingered in the minds of many who were involved in those events that Wednesday in 1976: did the 1976 bill ensure impunity for all "individuals from [the rank of] private on up"? Was the bill and its wording broad enough to protect everyone, as they had assumed?37

中文译文

国家行政改革委员会临时宪法第29条，已经赦免了参与1976年10月当晚政变的人。但人们担心其措辞所涵盖的范围有限，无论就个人还是就当天夺取政权相关行为而言皆是如此。因此，起草法案时的讨论围绕所要涵盖的行为范围（这些行为是什么、何时何地发生）、不当行为的内容以及实施者是谁展开。核心问题是：当天上午发生的事情——屠杀和反对民选政府的示威——是否应被视为政变的一部分，从而也被纳入大赦？然而，1976年法案起草时距离所谓战胜共产主义者的欢庆胜利只有几个月，起草者希望确保那些被关在监狱里的人得不到赦免。无论是在起草者内部的审议中，还是在立法机关的讨论中，屠杀和反对社尼政府的示威都曾被谈及。按照他们的看法，当天上午的一切事件彼此相关，并且也与晚上的政变有关。　　尽管意识到了这一点，屠杀既没有被明确提及，也没有得到暗示。1976年大赦法案开始实施，但随着时间推移，许多参与1976年那个星期三事件的人心中始终留有疑问：1976年法案是否确保所有"从［列兵］到上级的人员"都不会被追究？法案及其措辞是否像他们所认为的那样，足够宽泛，能够保护所有人？

[P038]

英文原文

Because the bill in 1976 did not specifically mention the massacre and focused instead on the coup, these people needed another bill specifically to ensure immunity for their involvement in the massacre. Ironically, the perpetrators of the massacre appeared to feel so vulnerable that they needed altogether three pieces of legislature to protect them: Article 29 of the NARC interim constitution, the 1976 amnesty bill, and the 1978 amnesty bill. The last differed from the earlier ones on at least two counts. First, it intended particularly to grant amnesty to those on trial that the earlier bill did not want to include. Second, it concerned all the wrongdoing and all wrongdoers of the incident at Thammasat in particular, not just the coup.

中文译文

由于1976年法案没有具体提到屠杀，而是聚焦于政变，这些人需要另一项法案，以明确保证他们参与屠杀不会被追究。讽刺的是，屠杀加害者似乎感到自己如此脆弱，以至于需要总共三项法律来保护自己：国家行政改革委员会临时宪法第29条、1976年大赦法案和1978年大赦法案。最后一项至少在两方面不同于此前的法案。第一，它特别意在赦免当时正在受审、而此前法案不愿涵盖的人。第二，它针对法政大学事件中所有不当行为与所有行为人，而不仅仅是政变。

[P039]

英文原文

Despite its specific attention to the incident at Thammasat, the 1978 bill was loaded with ambiguities and silence that spoke loudly on several matters. Most conspicuous was the absence of any mention of the massacre (killing, death, brutality, and so on). The perpetrators wanted amnesty for crimes they were unwilling to identify precisely and which they tried to banish into nonexistence. In doing so, and as a consequence, the massacre remained between absence and presence, erasure and recognition, and forgetting and remembering. It was in-between the states of presence and memory. It was a specter that haunted the entire bill. The irony is that the 1978 bill appeared to give amnesty to the Bangkok 18 for nonexistent crimes they had committed, it was in fact an amnesty for the perpetrators of real crimes that were not mentioned in the bill and that remained in oblivion.38 After their victory by butchering people barbarically, they needed three laws to exorcise the specter of the massacre.

中文译文

尽管1978年法案专门针对法政大学事件，却充满了模糊之处和在若干问题上大声言说的沉默。最显眼的是完全没有提及屠杀（杀戮、死亡、残暴行为等等）。加害者希望自己得到赦免，却不愿准确指出犯下的罪行，还试图把那些罪行驱逐到仿佛不存在的状态。在这一过程中，也由此造成的结果是，屠杀始终徘徊在缺席与在场、抹除与承认、遗忘与记忆之间。它处于存在与记忆的中间状态，像一个萦绕于整部法案的幽灵。讽刺之处在于，1978年法案表面上赦免了曼谷十八人犯下的并不存在的罪行，实际上赦免的却是真正犯下了罪行、而罪行在法案中没有被提及并被遗忘的加害者。　　这些人在野蛮屠戮民众取得胜利后，还需要三项法律才能驱除屠杀的幽灵。

The Amnesty in the Larger Domestic Context

大赦所处的更广泛国内背景

[P040]

英文原文

The trial and the amnesty took place at a critical juncture for the Thai state. The prosecution of the Bangkok 18 epitomized a conundrum the Thai state was facing in its fight against communism, namely, that its military-oriented counterinsurgency strategy had not only failed to stem the expansion of communist influence but had also actually fueled its growth. Observing that the CPT had grown exponentially, especially since the massacre, more people in the counterinsurgency community realized that the longer the persecution of the communists, which the October 6 trial essentially was, went on, the more it would benefit the CPT.

中文译文

审判和大赦发生在泰国国家的一个关键转折点。对曼谷十八人的起诉，集中体现了泰国国家在反共斗争中面临的困境：以军事为主的反叛乱战略不仅未能遏制共产主义影响的扩张，反而实际上促使其增长。观察到泰国共产党尤其自屠杀以后呈指数式壮大，反叛乱领域里越来越多人意识到，继续迫害共产主义者——10月6日审判本质上正是这种迫害——持续得越久，对泰国共产党就越有利。

[P041]

英文原文

For decades during the Cold War, the United States and the Thai state believed and depicted the spread of communism as the infiltration by foreign enemies—namely, the People's Republic of China, North Vietnam, and "Red Laos"—that sought to colonize and destroy Thailand. Communists were not Thai other than those locals who were deceived. The alternative view—namely, that communism primarily stemmed from the domestic conditions (injustice, poverty, oppression)—had not yet gained broad acceptance in the security community, though that was growing with time. Accordingly, the dominant approach to counterinsurgency was to identify and locate the infiltrators and eradicate them by force (arrest, detain, and kill), or known as the military-over-political approach, in contrast with political and economic solutions to eradicate the conditions that provided fertile ground for communism, dubbed the political-overmilitary approach.39

中文译文

冷战期间的数十年里，美国与泰国国家相信，并将共产主义传播描绘为外国敌人的渗透——即中华人民共和国、北越和"红色老挝"——这些国家意图殖民并摧毁泰国。除了受骗的本地人以外，共产主义者被认为不是泰国人。另一种看法——共产主义主要源于国内的不公正、贫困和压迫等条件——虽然随着时间推移在安全部门中获得越来越多支持，却尚未被广泛接受。因此，占主导地位的反叛乱方法，是查明并定位渗透者，然后用武力（逮捕、拘留、杀害）消灭他们，这被称为"军事优先于政治"的方法；与之相对的"政治优先于军事"方法，则主张通过政治与经济解决方案，消除为共产主义提供滋生土壤的条件。

[P042]

英文原文

In 1973 to 1976 period, the dominant point of view was challenged, the alternate view being that most communists were rural folks who were neglected and suppressed. They were victims of abuses by the authority.40 Thus, the more abuses, the more communists. The student movement helped shift the scale of the two approaches, exposing the cruelty and consequences of hawkish methods and raising awareness of the conditions that fueled the growth of communism. The public perception of communists shifted. In this light, the massacre was both the culmination of and the colossal mistake in the war against communism because "this single event represented a great leap forward for the CPT, which gained over 3,000 of Thailand's brightest and best left-leaning students, teachers, labor leaders, and politicians."41 The Thai state helped make the CPT stronger than ever. "At its peak," a study suggests, "it had 12,000 to 14,000 soldiers according to government estimates; according to other estimates, there were 20,000. Guerilla zones existed in more than 40 provinces and the CPT had influence in

thousands of villages with a total population of more than 3 million."42

中文译文

1973年至1976年间，占主导地位的观点受到挑战。另一种观点认为，大多数共产主义者是被忽视和压制的乡村民众，是当局滥权的受害者。　　因此，压迫越多，共产主义者就越多。学生运动帮助改变了两种方法的力量对比，揭露强硬手段的残酷及其后果，提高公众对促使共产主义增长的条件的认识。公众对共产主义者的看法发生了变化。从这个角度看，屠杀既是反共战争的顶点，也是一个巨大的错误，因为"这一件事就代表泰国共产党向前迈出巨大一步，它获得了三千多名泰国最聪明、最优秀的倾左学生、教师、劳工领袖和政治人物"。　　泰国国家帮助泰国共产党变得空前强大。一项研究指出，"在其巅峰时期，据政府估计，它拥有12,000至14,000名士兵；另一些估计则为20,000人。游击区存在于40多个府，泰国共产党对数千个村庄拥有影响力，涉及总人口超过300万人"。

[P043]

英文原文

The military leaders and younger commanders who leaned to the political-over-military approach played key roles in the successful coup in 1977.43 They began to turn the state's policies and measures against the communists. Unlike the ultraconservative Thanin government, the new regime treated the radical students not as proxies of the communist aliens but as their own ideological opponents. In early 1978, it ordered the state's universities to readmit any students who had disappeared after the massacre and now wanted to return to class. They even allowed, within certain limits, a resumption of student activism.44 The about-face of the state's counterinsurgency efforts extended to those radical students who had gone to the jungles and to all the CPT cadres as well. As we will see in chapter 5, the turnaround was a key factor that contributed to the eventual collapse of the CPT and the radical movement in Thailand. In this light, the 1978 amnesty of the Bangkok 18 was a significant moment in the shift in the state's anticommunist strategy.

中文译文

倾向"政治优先于军事"方法的军方领导人与年轻指挥官，在1977年成功政变中发挥了关键作用。

他们开始转变国家针对共产主义者的政策与措施。与极端保守的他宁政府不同，新政权并不把激进学生当作外国共产主义者的代理人，而把他们视为本国的意识形态对手。1978年初，新政权命令国立大学重新接纳任何在屠杀后失踪、如今希望重返课堂的学生；它们甚至在一定限度内允许学生政治活动恢复。　　国家反叛乱努力的这一转向，也扩展到前往丛林的激进派学生以及所有泰国共产党干部。正如第五章将看到的，这一转变成为最终导致泰国共产党与激进运动在泰国崩溃的关键因素。从这个角度看，1978年对曼谷十八人的大赦，是国家反共战略转向中的一个重要时刻。

The Beginning of Silence

沉默的开始

[P044]

英文原文

The day after our release, Prime Minister Kriangsak invited the Bangkok 18 to a lunch at his residence. He opened his home and went into the kitchen himself to cook, performing for dozens of reporters and television cameras.45 I have three observations about this lunch spectacle. First, Kriangsak urged us, and by extension other student activists and the Thai public as well, to let go of the painful and divisive past. It had been a “nightmare” (fan rai), he said, and we should start afresh for the sake of the unity and harmony of the nation. Second, he emphasized repeatedly that the successful amnesty was owed to the benevolence of the king and the crown prince. It was not clear whether he was trying to avert repercussions from opponents of the amnesty by citing the royal protection or trying to please them by giving them credit. Third, throughout the entire encounter, Kriangsak treated us as the wrongdoers, such as by telling us not to repeat past mistakes. This definitely reflected his view and possibly that of all of those in power as well. It was the same discourse that had been formally inscribed into the amnesty law. In response to this unwarranted verdict, Sutham, the leader of the Bangkok 18, insisted during those hours that “We are the Innocent” (Rao khu phu borisut), not the wrongdoers. Even though it may have seemed of little effect at the time, Sutham’s remark was a historic one, a simple sentence that crystalized the entire counternarrative to the state’s memory.46 It notified history that the perpetrators of the massacre were still unpunished, regardless of what the amnesty law said.

中文译文

我们获释的第二天，江萨总理邀请曼谷十八人到他的住所吃午饭。他打开家门，亲自进入厨房做饭，在数十名记者和电视摄影机面前表演。　　我对这场午餐表演有三点观察。首先，江萨敦促我们，并通过我们敦促其他学生活动分子和泰国公众，放下痛苦而造成分裂的过去。他说，那只是一场“噩梦”（fan rai），为了国家的团结和睦，我们应该重新开始。其次，他反复强调大赦之所以成功，是因为国王与王储的仁慈。尚不清楚他援引王室的保护，是为了避免大赦反对者的报复，还是为了把功劳归于他们、取悦他们。第三，在整个会面期间，江萨都把我们当作犯错者，例如告诫我们不要重复过去的错误。这无疑反映了他的观点，也可能反映所有掌权者的观点。它与正式写进大赦法的那套话语相同。为了回应这种没有根据的裁决，曼谷十八人的领袖素探在会面期间坚持说：“我们是无辜者”（Rao khu phu borisut），不是犯错者。虽然这句话在当时看起来可能没什么效果，但素探的发言具有历史意义。这个简单的句子凝聚了与国家记忆相对立的整个反叙述。　　它向历史宣告：不管大赦法怎么说，屠杀的加害者仍未受到惩罚。

[P045]

英文原文

On the following day, September 18, the student unions from many campuses cooperatively organized welcome-back celebrations for the Bangkok 18. The biggest and central event was at TU in the morning before each of the eighteen would return to their campuses for separate events. Several thousand people packed the Lan Pho, a historic space on Thammasat campus where many political gatherings took place and revolts began, to welcome all the released prisoners and their families. Brief stories about the massacre were told with an emphasis on “We are the Innocent.” Several speakers reminded people that the closure would not come for the massacre until the truth was known and justice served. Reports of the celebrations as well

as some accounts of the massacre appeared in newspapers. Many of us, the Bangkok 18, had scheduled talks with student groups to tell them what had happened two years earlier. A plan was also in place for an even more special event on September 22 to celebrate the release and to discuss the amnesty. Then, suddenly, the celebrations and all conversations about the massacre were cut short.

中文译文

次日，即9月18日，多个校园的学生会合作组织了欢迎曼谷十八人归来的庆祝活动。规模最大、最核心的活动上午在法政大学举行，此后18人各自返回自己的校园参加活动。数千人挤满兰坡（Lan Pho）广场，欢迎所有获释囚犯及其家人。兰坡是法政大学校园内具有历史意义的空间，许多政治集会在那里举行，反抗运动也从那里开始。人们简短讲述屠杀的故事，特别强调“我们是无辜者”。几位发言者提醒大家，只有知道真相并实现正义，屠杀才可能真正得到终结。庆祝活动的报道及一些关于屠杀的叙述出现在报纸上。我们曼谷十八人中的许多人已经安排与学生团体座谈，向他们讲述两年前发生的事情。9月22日还计划举行一场更特别的活动，庆祝获释并讨论大赦。然后，突然之间，庆祝和关于屠杀的一切谈话戛然而止。

[P046]

英文原文

After the celebration at TU, the government urged universities and student groups to scale back the welcome events. Citing Kriangsak and pressure from the government, Chulalongkorn University revoked permission to use its venue for the September 22 event. Student leaders had an hour-long meeting with Kriangsak the next day. The prime minister insisted that all celebrations be canceled. He said “this [October 6] incident is over, regardless of who was right or wrong.”47 A few days later, he urged the media to stop digging up information about the incident.48 The only reason he gave for the shutdown was for the sake of khwam samakkhi (unity and harmony). He also added vaguely that for the country to survive (yu rod), the situation was not right for the celebration. The state tried to suppress any exposure or discussion about the massacre in the name of unity and reconciliation, urging people to forget the past to avoid social divisiveness.

中文译文

法政大学庆祝活动结束后，政府敦促各大学和学生团体缩减欢迎活动。朱拉隆功大学援引江萨及政府施压，撤销了将场地用于9月22日活动的许可。第二天，学生领袖与江萨举行了长达一小时的会面。总理坚持要求取消一切庆祝活动。他说：“这起［10月6日］事件已经结束了，不管谁对谁错。”　　几天后，他敦促媒体停止挖掘事件信息。　　他给出的唯一理由是为了khwam samakkhi（团结与和睦）。他还含糊地补充说，为了国家能够生存（yu rod），目前的局势不适合举行庆祝。国家试图以团结与和解的名义压制任何对屠杀的揭露或讨论，并敦促人们忘记过去，以免造成社会分裂。

[P047]

英文原文

Unity, harmony, and reconciliation became buzzwords. For the sake of reconciliation, silence was prescribed, arguably so that the country could move on. The call for reconciliation and the

prescribed silence might not have been so effective if not for its timing. The country had been exhausted from several years of tense conflict and two colossal events of bloodshed, one of which was brutal beyond comprehension. The country had witnessed the rise and fall of euphoric democracy and then one of the most repressive authoritarian regimes in Thai history; it had seen the activism and demonstrations of both leftists and rightists. People were relieved when the Thanin government was ousted but probably were not eager to return to the years of radical activism either. Silence descended on the discourse of the October 6 massacre, perhaps not so much because people were willing to cooperate with the Thai state to forget, but because they were too exhausted to remember. The search for truth and the quest for justice were an uphill battle. The posttrial silence among the radicals and their sympathizers was reinforced soon afterward by disillusion among the radicals and the collapse of the CPT (see chapter 5).

中文译文

团结、和睦与和解成了流行语。为了和解，沉默被规定为应当采取的态度，理由可以说是让国家得以继续前进。如果时机不同，这种对和解的呼吁与规定的沉默，或许不会如此有效。这个国家已经经历多年紧张冲突和两场巨大的流血事件，因而筋疲力尽，其中一场的残暴程度难以理解。国家见证了令人欢欣的民主制度的兴起与衰落，随后又见证了泰国历史上压制最严厉的威权政权之一；人们经历了左翼和右翼双方的行动主义与示威。他宁政府垮台时，人们感到宽慰，但大概也不急于回到激进政治活动盛行的那些年。沉默笼罩了关于10月6日屠杀的话语，或许并非因为人们愿意与泰国国家合作来遗忘，而是因为他们太疲惫，难以再去记忆。寻找真相和追求正义是一场艰难的斗争。审判后激进派及其同情者的沉默，很快又因激进派的幻灭和泰国共产党的崩溃而得到强化（见第五章）。

[P048]

英文原文

For the perpetrators, the October 6 trial, which weakened the perpetrators' memory and strengthened that of the victims, proved almost a reversal of fortune for the triumphalist discourse. "Almost" because the state was able to buttress its verdict via the 1978 amnesty bill and their persistent public pronouncements that the students were the wrongdoers. The victims were able to claim a certain space in the public discourse, but not able to push any further in the wake of the silence following the trial. Nevertheless, Sutham's historic statement reflected the condition of memory in suspension: if we are the innocent, then who are the guilty? Despite the state's unjust verdict that the students were the wrongdoers, the public understood that the perpetrators of the massacre had not yet been held accountable for their crimes. The perpetrators, too, were aware that their version of events had lost ground, so they too avoided speaking about the massacre in public. Silence descended on everyone.

中文译文

对加害者而言，10月6日审判削弱了加害者的记忆，强化了受害者的记忆，对胜利主义话语几乎构成了命运的逆转。之所以说“几乎”，是因为国家仍能通过1978年大赦法，以及不断公开宣称学生才是犯错者，来巩固自己的裁决。受害者在公共话语中取得了一定空间，却无法在审判之后的沉默中进一步推进。尽管如此，素探的历史性声明反映了一种悬置的记忆状态：如果我们是无辜

者，那么谁是有罪者？尽管国家不公正地判定学生是犯错者，公众仍明白屠杀加害者尚未为罪行承担责任。加害者也意识到自己的事件版本正在失去优势，因此同样避免公开谈论屠杀。沉默降临到所有人身上。

[P049]

英文原文

On the second anniversary of the massacre, a newspaper was censored for publishing a cartoon about the incident. The press officer gave as a reason that “this issue [has] already quieted down through the amnesty which most people, including the students, are satisfied with.”49 The public discourse about the massacre quickly came to a halt. In 1979, police confiscated and closed a news magazine, Lok Mai, which published several pictures of the massacre.50 In the same year, Chulalongkorn University shut down the student union building to force the cancellation of the planned commemoration of the October events.51 In October 1982, two opposing student groups at Ramkhamhaeng University organized separate commemorations of the October 1973 uprising and the October 1976 massacre. The leftists celebrated the heroism and sacrifices of the martyrs of both events. To the other group, however, the 1973 uprising was a cause for celebration, but it had been tarnished by the leftists whose mistakes and failure were to blame for the tragedy in 1976. When the tension between the two groups was reported, the minister of interior commented,

中文译文

屠杀两周年时，一份报纸因为刊登有关事件的漫画而受到审查。新闻官给出的理由是：“这一问题［已经］因为大赦而平息，大多数人，包括学生，都对大赦感到满意。” 关于屠杀的公共话语很快停顿下来。1979年，警方查抄并关闭了新闻杂志《新世界》（Lok Mai），因为它发表了几张屠杀照片。 同年，朱拉隆功大学关闭学生会大楼，以迫使原计划举行的十月事件纪念活动取消。 1982年10月，兰甘亨大学的两个立场对立的学生团体，分别组织了纪念1973年10月起义和1976年10月屠杀的活动。左翼团体赞扬两次事件中烈士的英雄主义与牺牲。另一个团体则认为，1973年起义值得庆祝，但左翼分子的错误与失败玷污了它，并应为1976年的悲剧负责。当媒体报道两个团体之间的紧张关系时，内政部长评论道：

[P050]

英文原文

[Why] is that damn thing about 6 October not over yet? It was many years ago. Isn’t it over and done yet? . . . It shouldn’t have any fuel left. Come on, [we] should help the country. We should look forward to the future. Why do we keep bringing back the past. Let’s forget it. Only a small group of students is causing trouble [because] they have their heads stuck on October 6. The country is getting better now. Don’t pull it back.52

中文译文

“为什么［那个］该死的10月6日问题还没完？那已经是好多年前的事了。难道还没结束、还没了结吗？……它不该再有燃料了。拜托，［我们］应该帮助国家，应该向前看。为什么总把过去翻出来？忘了它吧。只有一小撮学生在惹事，［因为］他们的脑子还停留在10月6日。国家现在越来越好了，不要把它拖回过去。”

[P051]

英文原文

The commemorations of the massacre were well attended in 1978, less than a month after the amnesty, and in 1979. After that, based on news reports, it faded quickly and dissipated in the early 1980s. A news report in 1983 remarked that the commemoration was “sleepy” (ngoi).53 In most years, the only commemoration was a small, poorly attended one at Thammasat. It was undistinguished and not always held. The only exception was in 1988, and it was due to a controversy discussed in the next chapter. In 1994, while on a research leave in Thailand, I attended the commemoration on the morning of October 6. Two hands were all that were needed to count the number of organizers and attendees together.

中文译文

根据新闻报道，屠杀纪念活动在1978年——大赦后不到一个月——以及1979年都有很多人参加。此后，纪念活动迅速衰退，并在20世纪80年代初逐渐消散。1983年一篇新闻报道把纪念活动形容为“昏昏欲睡”（ngoi）。　　多数年份里，唯一的纪念活动只是法政大学一场规模小、参加者寥寥的活动。它毫不起眼，也不是每年都举办。唯一的例外是1988年，原因是下一章会讨论的一场争议。1994年，我在泰国休研究假，于10月6日早晨参加了纪念活动。当时组织者与参加者加起来，用两只手就能数得过来。

[P052]

英文原文

The October trial as a mnemonic moment was a milestone in the history of the massacre. It was also the beginning of silence. Ambiguity about what happened, about who were guilty, remained for many years. The massacre became known by the blandest of terms—“the October 6 event”—a reflection of ambivalence in an atmosphere of reconciliation.

中文译文

10月6日审判作为一个唤起记忆的时刻，是屠杀历史中的里程碑，也是沉默的开端。关于发生了什么、谁是有罪者的模糊不清状态持续多年。这场屠杀最终以最平淡的名称——“10月6日事件”——为人所知，反映了和解氛围中的矛盾态度。